particularly from populist leaders in the region. Presidents Pierre Nkurunziza of Burundi, Yahya Jammeh of The Gambia, Jacob Zuma of South Africa, and Kenya's former president Raila Odinga have all voiced fierce opposition to the Court, claiming it unfairly targets African leaders (Voeten 2020).

Kenya's Parliament set the stage for this backlash in 2013 when it passed a motion to withdraw from the ICC, though the country ultimately did not follow through. The situation escalated in 2016 when Burundi, The Gambia, and South Africa initiated withdrawal efforts, with Burundi's Parliament overwhelmingly voting to leave. President Nkurunziza promptly signed the motion into law, making Burundi the first and only African nation to officially exit the Rome Statute. In early 2017, the African Union even adopted a nonbinding resolution advocating for a collective withdrawal from the ICC, further amplifying these challenges.[105]

The rhetoric surrounding these withdrawal efforts heavily emphasized claims of injustice and bias. South African leaders pointed out that only Africans had been charged in the six ICC cases at the time, fueling perceptions of systemic prejudice (Voeten 2020). Gambian information minister Sheriff Bojang went further, branding the ICC the "International Caucasian Court" and accusing it of targeting people of color, especially Africans.[106] Specific flashpoints, such as the arrest warrant issued for Sudanese president Omar al-Bashir and the ICC's criticism of South Africa for allowing al-Bashir to attend an African Union Summit in 2015, further inflamed tensions (Souris 2020).

Despite this wave of hostility, the ICC managed to retain most of its African membership, with only Burundi completing its withdrawal. In The Gambia, presidential candidate Adama Barrow campaigned on reversing Jammeh's withdrawal decision,[107] and upon his election in 2017, he reinstated the country's ICC membership.[108] Similarly, South Africa's courts blocked its withdrawal, deeming the motion unconstitutional.[109] These reversals underscored the resilience of the ICC in the face of populist challenges.

To address this backlash, the ICC employed a variety of strategies to maintain its legitimacy and membership. It worked closely with civil society organizations and nonpopulist governments to rally support. Seminars, advocacy campaigns, and partnerships with regional